

PASSED

CHICKASAW TRIBAL LEGISLATURE

**Permanent Resolution Number 15-007
Amendments to the Beverage Control Act of 1991**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, There is a need for revisions to the Chickasaw Nation Beverage Control Act of 1991 in order that compliance with federal interpretations of tribal ordinances might be accomplished.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves the following amendments to the Beverage Control Act of 1991:

Section 3-203 (5) will be amended in the following manner:

(5) "Alcoholic beverage sales" shall means the sale of alcoholic beverages by the bottle, by the drink or by the can to the general public ~~for the purpose of generating revenue for the~~ Chickasaw Nation;

Section 3-203 (14) will be amended in the following manner:

(14) "Premises" shall means any room ~~had~~ hall, enclosure, store or outdoor area that is located on property which is held in a trust status for and owned by the Chickasaw Nation or any of its political subdivisions or property which is owned in fee by the Chickasaw Nation, where alcoholic beverages, beer or wine coolers are sold and/or consumed.

Section 3-204 (8) will be amended in the following manner:

(8) prohibits the advertising or offering of "happy hours" or any other means or inducement to stimulate the consumption of alcoholic beverages, including but not limited to the

following:

- (a) delivering more than two drinks to any one person at ~~any one~~ the same time;
- (b) selling or offering to sell to any person or group of persons any drinks at a price less than the price regularly charged for such drinks during the same calendar week; except ~~a~~ at private functions not open to the public;
- (c) selling or offering to sell to any person an unlimited number of drinks during any set period of time for a fixed price, except at private functions not open to the public;
- (d) selling or offering to sell drink to any person or group of persons on any day at prices less than those charged the general public on that day, except at private functions not open to the public.
- (e) increasing the volume of alcoholic beverages contained in a drink without increasing proportionately the price regularly charged for such drink during the same calendar week.

Section 3-204 (2) will be amended in the following manner:

(2) authorizes the sale of wine, mixed beverages and alcoholic beverages, for on-premises consumption, on Monday through Saturday of the week, with sales of such beverages prohibited between the hours of 2 o'clock a.m. Sunday through 10 o'clock a.m. Monday, and between the hours of 2 o'clock a.m. and 10 o'clock a.m. on every day of the week; provided, that all such sales ~~are~~ are made in accordance with all applicable federal laws, rules and regulations.

Section 3-204 (6) will be amended in the following manner:

(6) prohibits employment any person under the age of twenty-one (21) years ~~of age~~ to engage in the selling or handling of alcoholic beverages; provided, that a Chickasaw Nation business

enterprise engaged in activities other than the selling, dispensing and consumption of alcoholic beverages may employ persons who are eighteen (18) years of age or older, except in designated bar or lounge areas, so long as those employees are supervised by another ~~employs~~ employee who is over the age of twenty-one;

Section 3-204 (7) will be amended in the following manner:

(7) establishes the requirement for positioning, in full public view, at all ~~Premises~~ premises where alcoholic beverages, mixed beverages, and wine, wine coolers and/or beer are sold ~~an/or~~ and served for ~~on-Premises~~ on-premises consumption, a sign prohibiting the entry of minor persons, with such signs being prescribed by the Office of the Governor; ;

Section 3-204 (8) (b) will be amended in the following manner:

(b) selling or offering to sell to any person or group of persons any drinks at a price less than the price regularly charged for such drinks during the same calendar week, except ~~a~~ at private functions not open to the public;

Section 3-204 (9) will be amended in the following manner:

(9) establishes the authority for the Chickasaw Tax Commission to issue beverage ~~Licenses~~ licenses to any tribal enterprise which meets the provisions of this Act in the ~~control-Ling~~ controlling of such enterprises in relation to the sale of beverages containing alcohol, and charges the Chickasaw Tax Commission with assuring itself that any and all other tribal laws, rules or regulations, or federal law, rules or regulations, including rulings issued by courts of competent jurisdiction, pertaining to the ~~control-of-those~~ sale of alcoholic beverages by those enterprises, are fully complied with by those enterprises.

Section 3-208 will be amended in the following manner:

No employee, servant or agent of the Chickasaw Nation shall permit any person to open or

consume any alcoholic beverage, including mixed beverages, wine, wine coolers and beer on tribal premises regulated by this Act; provided, the commission will identify specific locations premises in of the Chickasaw Nation where such drinks may be consumed, in accordance wide with the provisions of ~~this~~ this Act and of prevailing applicable law.

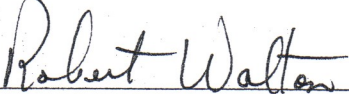
Section 3-211 will be amended in the following manner:

All Chickasaw Nation enterprises and all tribal employees, servants or agents involved in the sale of alcoholic beverages, wine, wine coolers and/or beer shall comply wide with Oklahoma state liquor standards to the extent required by 18 USC 1161; however, total jurisdiction over the sale of alcoholic beverages, wine, wine coolers and/or beer is reserved to and exercised by the Chickasaw Nation within the boundaries of the Chickasaw Nation.

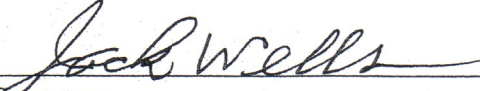
Section 3-212 will be amended in the following manner:

Tribal tax ~~Laws~~ laws and tribal taxation authority, shall in no way be otherwise affected by this Act, and all such taxes and taxation authority shall remain intact and is reserved to the Chickasaw Nation as otherwise provided by tribal ~~Law~~ law, by federal statute, or by interpretations and rulings made by courts of competent jurisdiction.

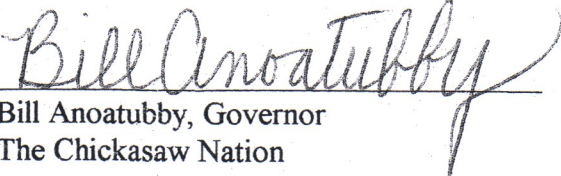
Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on March 20, 1998, by a vote of 11 ayes, 2 nays, 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur: 

Bill Anoatubby, Governor
The Chickasaw Nation

Date: MAR 20 1998

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Explanation:

Requested By: Bill Anoatubby, Governor